

JURY TRIAL PHASE TWO INSTRUCTION

There is one more issue that you must decide. The United States alleges that Clayton High Wolf, Jr., before committing the offense of conspiracy to distribute methamphetamine, was previously convicted of a serious drug felony. You have heard evidence of a prior drug felony conviction in United States v. Clayton High Wolf, Jr., 5:13-CR-50133-1, from February 26, 2015.

You must decide two questions with respect to that prior conviction. The United States has the burden of convincing you, beyond a reasonable doubt, that the answer to each of the following questions is "Yes." If the Government fails to meet its burden of proof beyond a reasonable doubt, you must answer the questions "No." The questions are:

First, did Defendant Clayton High Wolf, Jr. serve a term of imprisonment of more than twelve months on a serious drug felony conviction?

A term of imprisonment is the period of actual confinement served relating to the conviction.

Second, was Defendant Clayton High Wolf, Jr. released from the term of imprisonment within fifteen years of the commencement of the crime charged in the indictment?

As previously stated, the United States has the burden of convincing you that the answer to each question is "Yes," meaning that the United States must prove each of the issues beyond a reasonable doubt.